

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ FOR PROPOSAL (RFP)
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
	(Use Reverse and/or Attach Additional Sheets as Necessary)				
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED					
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED			☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Solicitation/Contract Form Continuation

Instrument Name: FY26 Quillayute River Log Removal Contract

Product Service Code : F999

INSTRUCTIONS TO OFFERORS

1. REPRESENTATIONS AND CERTIFICATIONS CONTAINED HEREIN MUST BE COMPLETED BY QUOTERS AND RETURNED WITH QUOTES:

IF YOUR REPRESENTATIONS AND CERTIFICATIONS ARE REGISTERED IN THE "SYSTEM FOR AWARD MANAGEMENT" (SAM) CHECK HERE . IF NOT, YOU CAN REGISTER

ONLINE AT <https://sam.gov/>

2. The solicitation is "100% small business set-aside." All works shall be in accordance with the Performance Work Statement (PWS), attachments, and all other terms and conditions herein.

3. Request for Quote No: W912DW26QA042

4. Email quotes shall be accepted before closing at e-mail address hien.ho@usace.army.mil. For questions, please email the above email address.

5. PROSPECTIVE CONTRACTORS: Contractors are required to be registered in the System for Awards Management (SAM) for awards resulting from solicitations.

"Registered in the System for Award Management (SAM) database" means that -

a. The Offeror has entered all mandatory information, including the unique entity identifier and the EFT indicator, if applicable, the Commercial and Government Entity (CAGE) code, as well as data required by the Federal Funding Accountability and Transparency Act of 2006 (see subpart 4.14), into the SAM database;

b. The offeror has completed the Core, Assertions, and Representations and Certification, and Points of Contact sections of the registration in the SAM database;

c. The Government has validated all mandatory data fields, to include validation of the Taxpayer Identification Number (TIN) with the Internal Revenue Service (IRS). The Offeror will be required to provide consent for TIN validation to the Government as a part of the SAM registration process.

d. The Government has marked the record "Active".

This rule more efficiently implements the Debt Collection Improvement Act of 1996, as it requires contractors to be registered in SAM for consideration of future solicitations, awards, and payment. Registration is required prior to award of any contract, basic agreement, basic ordering agreement, or blanket purchase agreement from a solicitation.

LACK OF REGISTRATION IN THE SAM DATABASE WILL MAKE A QUOTE INELIGIBLE FOR AWARD.

The web site may be accessed at <https://sam.gov/>

6. Award will be made to the lowest priced, responsible quoter, whose quote conforms to the requirement of the solicitation.

7. State and Local Taxes

The U.S. Army Corps of Engineers is exempt from paying state and local taxes per Title 4 United States Code 104-107. The U.S. Army Corps of Engineers Tax ID Number is 62-1642142.

Contractors performing services for the U.S. Army Corps of Engineers are not exempt from state and local taxes in transactions with vendors, suppliers, or subcontractors. It is the contractor's responsibility to investigate applicable federal, state, and local taxes, along with any specific exemptions that may exist.

This includes any applicable Value-Added Taxes (VAT), sales, use, and excise taxes.

The U.S. Army Corps of Engineers will not accept any invoice with a separate tax line. If there are any appropriate taxes, the contractor may consider that tax as the cost of doing business and incorporate that cost within the cost of the item or job.

8. Required Submittals:

- a. Signed and dated STANDARD FORM 1449 (Solicitation/ Contract/ Order for Commercial Items).
- b. Signed and dated STANDARD FORM 30, if applicable, for any Amendments to the solicitation.
- c. Completed pricing information for all CLIN items.
- d. Required items in #9 below.

9. The following information is **required** with quotation submission:

Unique Entity ID: _____

Cage Code Number: _____

This requires registration in SAM, web site for registration is www.sam.gov.

Remit to Address: _____

Company Name: _____

Address: _____

City/State/Zip: _____

Phone & Fax Numbers: _____

Point of Contact: _____

E-Mail Address: _____

The quoter must provide pricing for all items in the solicitation for its quote to be acceptable to the Government. All questions resulting from this RFQ shall be submitted by close of business two (2) days prior to the closing date. All quoted items must meet the requirements of the Request for Quote (RFQ).

Multiple quotes are not accepted for this RFQ. If multiple quotes are received only one quote (as determined by the Contracting Officer) will be evaluated by the Government. The quote shall be determined acceptable based on the date and time received.

*** END OF NARRATIVE ***

PERFORMANCE WORK STATEMENT (PWS)

Fiscal Year (FY) 2026 Debris Removal Services Quillayute River

La Push, Washington

PART 1. GENERAL: This is a non-personal services contract to provide debris removal services. The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.

1.1 Description of Services/Introduction: The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform debris removal services as defined in this Performance Work

Statement (PWS) except for those items specified as Government furnished property and services. The Contractor shall perform to the standards in this contract.

1.2 Background: There is a submerged tree in the Quillayute River channel in position 4754'35.460" N, 12438'20.904" W. The USCG determined the tree is creating an obstruction that significantly impedes mariners from safely navigating to La Push, Washington. The USCG determined this to be a hazard to navigation in accordance with 33 CFR 245.20. Seattle District U. S. Army Corps of Engineers (USACE) determined the tree in question, starting at +/-CL of 25+00, is approximately 70 feet long from the roots heading SE to SSE, and is around 25 to 30 feet wide at its fullest. USACE requires debris removal services to remove and dispose the submerged tree creating the obstruction.

1.3 Objectives: Provide debris removal services for an obstruction in the Quillayute River Federal channel.

1.4 Scope: The scope of work is for services to remove and dispose of a tree submerged in the Quillayute River channel. The services provided under this contract are presented in detail in Part 5-Specific Tasks.

1.5 Period of Performance: The period of performance shall be for 30 days after the date of award.

1.6 General Information

1.6.1 Quality Assurance: The Government shall evaluate the Contractor's performance under this contract. This plan is primarily focused on what the Government must do to ensure that the Contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s). Performance requirements can be found below in Section 6.

1.6.2 Place of Performance: The work to be performed under this contract will be performed in the Quillayute River channel in La Push, Washington.

1.6.3 Type of Contract: The Government will award a firm-fixed price service contract.

1.6.4 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity. The contracting officer and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings the Government personnel will apprise the Contractor of how the Government views the Contractor's performance and the Contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the Government.

1.6.5 Key Personnel: The Contractor shall provide a contract manager who shall be responsible for the performance of the work. The name of this person and an alternate who shall act for the Contractor when the manager is absent shall be designated in writing to the contracting officer. The contract manager or alternate shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract. The contract manager or alternate shall be

available between 0900-1700, Monday thru Friday except Federal holidays or when the facility is closed for administrative reasons.

1.6.6 Security Requirements: Pre-screen candidates using E-Verify Program: Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at (<https://www.e-verify.gov/>)(website subject to change) to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1(i). An initial list of verified/eligible candidates shall be provided to the COR no later than three business days after the initial contract award. When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.

PART 2. DEFINITIONS AND ACRONYMS:

2.1 DEFINITIONS:

2.1.1 CONTRACTOR. A supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

2.1.2 CONTRACTING OFFICER. A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the Government.

2.1.3 CONTRACTING OFFICER'S REPRESENTATIVE (COR). An employee of the U.S.

Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

2.1.4 DEFECTIVE SERVICE. A service output that does not meet the standard of performance associated with the Performance Work Statement.

2.1.5 DELIVERABLE. Anything that can be physically delivered but may include non-manufactured things such as meeting minutes or reports.

2.1.6 KEY PERSONNEL. Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.10 QUALITY ASSURANCE. The Government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.1.11 QUALITY ASSURANCE SURVEILLANCE PLAN (QASP). An organized written document specifying the surveillance methodology to be used for surveillance of Contractor performance.

2.1.12 QUALITY CONTROL. All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

2.1.13 SUBCONTRACTOR. One that enters into a contract with a prime Contractor. The Government does not have privity of contract with the subcontractor.

2.1.14 WORK-DAY. The number of hours per day the Contractor provides services in accordance with the contract.

2.1.15. WORK WEEK. Monday through Friday, unless specified otherwise.

2.2 ACRONYMS:

COR: Contracting Officer Representative

DOD: Department of Defense

PM: Project Manager

POC: Point of Contact

PRS: Performance Requirements Summary

PWS: Performance Work Statement

QA: Quality Assurance

QASP: Quality Assurance Surveillance Plan

QC: Quality Control

QCP: Quality Control Program

QSM: Department of Defense Quality Systems Manual

USACE: U.S. Army Corps of Engineers

PART 3. GOVERNMENT FURNISHED ITEMS AND SERVICES:

3.1 Equipment: NA.

3.2 Materials: NA.

PART 4. CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:

4.1 General: The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Section 3 of this PWS.

4.2 Equipment: The Contractor shall furnish all equipment to meet the requirements under this PWS.

4.2 Materials: The Contractor shall furnish all materials to meet the requirements under this PWS.

PART 5. SPECIFIC TASKS:

5.1 Task 1. Mobilization/Demobilization

5.2 Task 2. Recover submerged tree. The Contractor shall remove the submerged tree from the Quillayute River in accordance with the approved work plan.

5.3 Task 3. Debris disposal or recycling. The Contractor shall dispose of the tree in the Pacific Ocean, or on the oceanside of the Rialto Revetment In accordance with the approved work plan

PART 6. DELIVERABLES:

Deliverables be required prior to execution.

6.1 Naval Architect Analysis - The Contractor shall provide a Naval Architect Analysis if using floating crane operations

6.2 Load Chart - A crane load chart is a safety document that lists the crane's maximum lifting capacity at different configurations, such as boom length, boom angle, and operating radius

6.3 Work Plan - The Contractor shall provide a work plan that describes - at a minimum - work activities, sequence, resources, schedule, equipment, and construction materials.

6.4 Spill Plan - This could be included with the EPP: Spill plan that includes procedures, instructions, and reports to be used in the event of an unforeseen spill of a substance regulated by 40 CFR 68, 40 CFR 302, 40 CFR 355 and/or regulated under State or Local laws and regulations.

6.5 Activity Hazard Analysis (AHA) - The Contractor shall provide copies of AHAs used during implementation of the tasks described in this PWS.

6.6 Other documents may be required in accordance with the EM 385-1-1.

PART 7. PERFORMANCE REQUIREMENTS SUMMARY:

The Contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective	Standard	Performance Threshold	Method of Surveillance
PRS # 1 - The submerged tree is no longer in the Quillayute River.	The Contractor removed the submerged tree as described in Part 5 (Specific Tasks) of this PWS.	Meet Standard	Performance will be evaluated by review of survey information before and after the work.
PRS # 2 - The tree is disposed.	The Contractor disposed of the removed tree as described in Part 5 (Specific Tasks) of this PWS.	Meet Standard	Performance will be evaluated by review of survey information before and after the work.

*** END OF NARRATIVE ***

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	FY26 Quillayute River Log Removal Contract. See attached PWS for completed details. Product Service Code: F999 Pricing Arrangement: Firm Fixed Price	1	Job		

Continuation of Description

Requirements

FY26 Quillayute Channel Log Obstruction Removal

Continuation of Deliveries or Performance

0001	Quantity 1 Job Address and POC Period of Performance From 19 Jun 2026 To 17 Jul 2026
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Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	2026-02		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	2026-02		
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	2026-02		

52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	2026-02
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform	2022-12		

Employees of Whistleblower
Rights.

252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	2023-11
252.204-7022	Expediting Contract Closeout.	2021-05
252.223-7008	Prohibition of Hexavalent Chromium.	2023-01
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.232-7011	Payments in Support of Emergencies and Contingency Operations.	2013-05
252.247-7023	Transportation of Supplies by Sea.	2024-10

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.222-42	Statement of Equivalent Rates for Federal Hires.	2014-05		

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-91	Contractor Identification. (Deviation 2026-O0038)	2026-02		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.222-3	Convict Labor. (Deviation 2026- O0038)	2026-02		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	2026-04		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026- O0038)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-04		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
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252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01
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List of Contract Documents, Exhibits, or Attachments

The attachments listed in this section are incorporated by reference and made part of this contract with the same force and effect as if included in full text.

*** END OF NARRATIVE ***

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	PWS	Performance Work Statement		21 Apr 2026			Attachment	Yes
0002	Wage Determination	Wage Determination		03 Dec 2025			Attachment	Yes

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	2023-11		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding	2022-05		

Business Operations with the
Maduro Regime.

252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region- Representation.	2023-06
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DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a

contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense

telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038)	2026-02		

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REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor	U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director	Division of Wage Determinations
	Wage Determination No.: 2015-5545 Revision No.: 30 Date Of Last Revision: 3/30/2026

State: Washington

Area: Washington Counties of Clallam and Jefferson

Fringe Benefits Required Follow the Occupational Listing

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		20.46
01012 - Accounting Clerk II		22.97
01013 - Accounting Clerk III		25.69
01020 - Administrative Assistant		34.00
01035 - Court Reporter		22.67
01041 - Customer Service Representative I		17.64
01042 - Customer Service Representative II		19.25
01043 - Customer Service Representative III		21.60
01051 - Data Entry Operator I		20.57
01052 - Data Entry Operator II		22.44
01060 - Dispatcher, Motor Vehicle		27.03
01070 - Document Preparation Clerk		18.05
01090 - Duplicating Machine Operator		18.05
01111 - General Clerk I		18.50
01112 - General Clerk II		20.19
01113 - General Clerk III		22.66
01120 - Housing Referral Assistant		25.26
01141 - Messenger Courier		16.04
01191 - Order Clerk I		19.30
01192 - Order Clerk II		21.06
01261 - Personnel Assistant (Employment) I		20.75
01262 - Personnel Assistant (Employment) II		23.20
01263 - Personnel Assistant (Employment) III		25.86
01270 - Production Control Clerk		26.06
01290 - Rental Clerk		19.77
01300 - Scheduler, Maintenance		20.26
01311 - Secretary I		20.26
01312 - Secretary II		22.67
01313 - Secretary III		25.26
01320 - Service Order Dispatcher		24.16
01410 - Supply Technician		34.00
01420 - Survey Worker		20.91
01460 - Switchboard Operator/Receptionist		18.86
01531 - Travel Clerk I		18.10
01532 - Travel Clerk II		20.32
01533 - Travel Clerk III		22.73
01611 - Word Processor I		18.64
01612 - Word Processor II		20.92
01613 - Word Processor III		23.40
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass		23.94
05010 - Automotive Electrician		25.21
05040 - Automotive Glass Installer		24.11
05070 - Automotive Worker		24.11
05110 - Mobile Equipment Servicer		21.92

05130 - Motor Equipment Metal Mechanic	26.26
05160 - Motor Equipment Metal Worker	24.11
05190 - Motor Vehicle Mechanic	26.26
05220 - Motor Vehicle Mechanic Helper	20.73
05250 - Motor Vehicle Upholstery Worker	22.83
05280 - Motor Vehicle Wrecker	24.11
05310 - Painter, Automotive	25.21
05340 - Radiator Repair Specialist	24.11
05370 - Tire Repairer	21.57
05400 - Transmission Repair Specialist	26.26
07000 - Food Preparation And Service Occupations	
07010 - Baker	18.39
07041 - Cook I	22.30
07042 - Cook II	25.06
07070 - Dishwasher	17.02
07130 - Food Service Worker	18.14
07210 - Meat Cutter	22.74
07260 - Waiter/Waitress	19.64
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	24.34
09040 - Furniture Handler	17.77
09080 - Furniture Refinisher	24.34
09090 - Furniture Refinisher Helper	19.65
09110 - Furniture Repairer, Minor	21.88
09130 - Upholsterer	24.34
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	18.18
11060 - Elevator Operator	20.00
11090 - Gardener	25.33
11122 - Housekeeping Aide	20.00
11150 - Janitor	20.00
11210 - Laborer, Grounds Maintenance	20.52
11240 - Maid or Houseman	17.44
11260 - Pruner	19.07
11270 - Tractor Operator	23.75
11330 - Trail Maintenance Worker	20.52
11360 - Window Cleaner	21.52
12000 - Health Occupations	
12010 - Ambulance Driver	25.41
12011 - Breath Alcohol Technician	33.46
12012 - Certified Occupational Therapist Assistant	41.75
12015 - Certified Physical Therapist Assistant	31.98
12020 - Dental Assistant	24.08
12025 - Dental Hygienist	56.75
12030 - EKG Technician	46.10
12035 - Electroneurodiagnostic Technologist	46.10
12040 - Emergency Medical Technician	25.41
12071 - Licensed Practical Nurse I	29.92
12072 - Licensed Practical Nurse II	33.46
12073 - Licensed Practical Nurse III	37.30
12100 - Medical Assistant	23.36
12130 - Medical Laboratory Technician	34.81
12160 - Medical Record Clerk	24.00
12190 - Medical Record Technician	26.84
12195 - Medical Transcriptionist	28.03
12210 - Nuclear Medicine Technologist	73.56
12221 - Nursing Assistant I	16.09
12222 - Nursing Assistant II	18.11
12223 - Nursing Assistant III	19.76
12224 - Nursing Assistant IV	22.18
12235 - Optical Dispenser	22.40
12236 - Optical Technician	29.92
12250 - Pharmacy Technician	23.65
12280 - Phlebotomist	23.85
12305 - Radiologic Technologist	45.05
12311 - Registered Nurse I	29.46
12312 - Registered Nurse II	36.05
12313 - Registered Nurse II, Specialist	36.05
12314 - Registered Nurse III	43.61
12315 - Registered Nurse III, Anesthetist	43.61
12316 - Registered Nurse IV	52.28
12317 - Scheduler (Drug and Alcohol Testing)	41.47
12320 - Substance Abuse Treatment Counselor	29.34
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	24.09
13012 - Exhibits Specialist II	29.83
13013 - Exhibits Specialist III	36.50
13041 - Illustrator I	24.09
13042 - Illustrator II	29.83

13043 - Illustrator III	36.50
13047 - Librarian	33.98
13050 - Library Aide/Clerk	21.49
13054 - Library Information Technology Systems Administrator	28.67
13058 - Library Technician	26.61
13061 - Media Specialist I	21.53
13062 - Media Specialist II	24.09
13063 - Media Specialist III	26.85
13071 - Photographer I	22.15
13072 - Photographer II	24.77
13073 - Photographer III	30.68
13074 - Photographer IV	37.53
13075 - Photographer V	45.42
13090 - Technical Order Library Clerk	26.98
13110 - Video Teleconference Technician	22.15
14000 - Information Technology Occupations	
14041 - Computer Operator I	22.48
14042 - Computer Operator II	25.15
14043 - Computer Operator III	28.04
14044 - Computer Operator IV	31.17
14045 - Computer Operator V	34.51
14071 - Computer Programmer I	(see 1) 24.47
14072 - Computer Programmer II	(see 1)
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	(see 1)
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	22.48
14160 - Personal Computer Support Technician	31.17
14170 - System Support Specialist	36.80
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	35.52
15020 - Aircrew Training Devices Instructor (Rated)	42.97
15030 - Air Crew Training Devices Instructor (Pilot)	51.51
15050 - Computer Based Training Specialist / Instructor	35.52
15060 - Educational Technologist	34.68
15070 - Flight Instructor (Pilot)	51.51
15080 - Graphic Artist	27.03
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	51.51
15086 - Maintenance Test Pilot, Rotary Wing	51.51
15088 - Non-Maintenance Test/Co-Pilot	51.51
15090 - Technical Instructor	30.62
15095 - Technical Instructor/Course Developer	37.46
15110 - Test Proctor	24.73
15120 - Tutor	24.73
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	
16010 - Assembler	23.17
16030 - Counter Attendant	23.17
16040 - Dry Cleaner	26.47
16070 - Finisher, Flatwork, Machine	23.17
16090 - Presser, Hand	23.17
16110 - Presser, Machine, Drycleaning	23.17
16130 - Presser, Machine, Shirts	23.17
16160 - Presser, Machine, Wearing Apparel, Laundry	23.17
16190 - Sewing Machine Operator	27.57
16220 - Tailor	28.67
16250 - Washer, Machine	24.27
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	35.68
19040 - Tool And Die Maker	41.62
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	23.29
21030 - Material Coordinator	26.06
21040 - Material Expediter	26.06
21050 - Material Handling Laborer	19.41
21071 - Order Filler	19.80
21080 - Production Line Worker (Food Processing)	23.29
21110 - Shipping Packer	22.74
21130 - Shipping/Receiving Clerk	22.74
21140 - Store Worker I	20.29
21150 - Stock Clerk	24.95
21210 - Tools And Parts Attendant	23.29
21410 - Warehouse Specialist	23.29

23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	39.94
23019 - Aircraft Logs and Records Technician	32.94
23021 - Aircraft Mechanic I	38.32
23022 - Aircraft Mechanic II	39.94
23023 - Aircraft Mechanic III	41.38
23040 - Aircraft Mechanic Helper	29.11
23050 - Aircraft, Painter	36.65
23060 - Aircraft Servicer	32.94
23070 - Aircraft Survival Flight Equipment Technician	36.65
23080 - Aircraft Worker	34.90
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	34.90
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	38.32
23110 - Appliance Mechanic	35.68
23120 - Bicycle Repairer	27.46
23125 - Cable Splicer	62.46
23130 - Carpenter, Maintenance	29.88
23140 - Carpet Layer	30.00
23160 - Electrician, Maintenance	37.70
23181 - Electronics Technician Maintenance I	35.77
23182 - Electronics Technician Maintenance II	37.57
23183 - Electronics Technician Maintenance III	39.28
23260 - Fabric Worker	32.08
23290 - Fire Alarm System Mechanic	37.31
23310 - Fire Extinguisher Repairer	30.23
23311 - Fuel Distribution System Mechanic	42.02
23312 - Fuel Distribution System Operator	34.05
23370 - General Maintenance Worker	24.86
23380 - Ground Support Equipment Mechanic	38.32
23381 - Ground Support Equipment Servicer	32.94
23382 - Ground Support Equipment Worker	34.90
23391 - Gunsmith I	30.23
23392 - Gunsmith II	33.98
23393 - Gunsmith III	37.31
23410 - Heating, Ventilation And Air-Conditioning Mechanic	29.23
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	30.47
23430 - Heavy Equipment Mechanic	34.34
23440 - Heavy Equipment Operator	34.97
23460 - Instrument Mechanic	37.31
23465 - Laboratory/Shelter Mechanic	35.68
23470 - Laborer	19.41
23510 - Locksmith	35.68
23530 - Machinery Maintenance Mechanic	33.13
23550 - Machinist, Maintenance	29.60
23580 - Maintenance Trades Helper	24.35
23591 - Metrology Technician I	37.31
23592 - Metrology Technician II	38.90
23593 - Metrology Technician III	40.29
23640 - Millwright	35.88
23710 - Office Appliance Repairer	35.68
23760 - Painter, Maintenance	25.88
23790 - Pipefitter, Maintenance	34.85
23810 - Plumber, Maintenance	33.33
23820 - Pneudraulic Systems Mechanic	37.31
23850 - Rigger	37.31
23870 - Scale Mechanic	33.98
23890 - Sheet-Metal Worker, Maintenance	37.37
23910 - Small Engine Mechanic	26.53
23931 - Telecommunications Mechanic I	32.22
23932 - Telecommunications Mechanic II	33.58
23950 - Telephone Lineman	33.13
23960 - Welder, Combination, Maintenance	27.28
23965 - Well Driller	36.36
23970 - Woodcraft Worker	37.31
23980 - Woodworker	30.23
24000 - Personal Needs Occupations	
24550 - Case Manager	22.47
24570 - Child Care Attendant	17.44
24580 - Child Care Center Clerk	21.74
24610 - Chore Aide	20.90
24620 - Family Readiness And Support Services Coordinator	22.47
24630 - Homemaker	22.47
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	32.49
25040 - Sewage Plant Operator	33.32
25070 - Stationary Engineer	32.49

25190 - Ventilation Equipment Tender		24.68
25210 - Water Treatment Plant Operator		33.32
27000 - Protective Service Occupations		
27004 - Alarm Monitor		29.28
27007 - Baggage Inspector		21.49
27008 - Corrections Officer		32.41
27010 - Court Security Officer		33.53
27030 - Detection Dog Handler		24.23
27040 - Detention Officer		32.41
27070 - Firefighter		34.99
27101 - Guard I		21.49
27102 - Guard II		24.23
27131 - Police Officer I		35.95
27132 - Police Officer II		39.95
28000 - Recreation Occupations		
28041 - Carnival Equipment Operator		21.25
28042 - Carnival Equipment Repairer		22.66
28043 - Carnival Worker		17.00
28210 - Gate Attendant/Gate Tender		22.24
28310 - Lifeguard		16.70
28350 - Park Attendant (Aide)		24.88
28510 - Recreation Aide/Health Facility Attendant		18.16
28515 - Recreation Specialist		30.82
28630 - Sports Official		19.82
28690 - Swimming Pool Operator		25.47
29000 - Stevedoring/Longshoremen Occupational Services		
29010 - Blocker And Bracer		34.25
29020 - Hatch Tender		34.25
29030 - Line Handler		34.25
29041 - Stevedore I		32.33
29042 - Stevedore II		35.97
30000 - Technical Occupations		
30010 - Air Traffic Control Specialist, Center (HFO)	(see 2)	51.79
30011 - Air Traffic Control Specialist, Station (HFO)	(see 2)	35.71
30012 - Air Traffic Control Specialist, Terminal (HFO)	(see 2)	39.32
30021 - Archeological Technician I		23.68
30022 - Archeological Technician II		26.49
30023 - Archeological Technician III		32.81
30030 - Cartographic Technician		32.81
30040 - Civil Engineering Technician		32.69
30051 - Cryogenic Technician I		35.89
30052 - Cryogenic Technician II		39.64
30061 - Drafter/CAD Operator I		23.68
30062 - Drafter/CAD Operator II		26.49
30063 - Drafter/CAD Operator III		29.52
30064 - Drafter/CAD Operator IV		36.34
30081 - Engineering Technician I		20.27
30082 - Engineering Technician II		22.53
30083 - Engineering Technician III		25.20
30084 - Engineering Technician IV		31.22
30085 - Engineering Technician V		38.19
30086 - Engineering Technician VI		46.21
30090 - Environmental Technician		32.42
30095 - Evidence Control Specialist		32.42
30210 - Laboratory Technician		29.52
30221 - Latent Fingerprint Technician I		35.89
30222 - Latent Fingerprint Technician II		39.64
30240 - Mathematical Technician		33.95
30361 - Paralegal/Legal Assistant I		24.12
30362 - Paralegal/Legal Assistant II		29.87
30363 - Paralegal/Legal Assistant III		36.53
30364 - Paralegal/Legal Assistant IV		44.20
30375 - Petroleum Supply Specialist		39.64
30390 - Photo-Optics Technician		32.81
30395 - Radiation Control Technician		39.64
30461 - Technical Writer I		32.42
30462 - Technical Writer II		39.64
30463 - Technical Writer III		47.96
30491 - Unexploded Ordnance (UXO) Technician I		32.91
30492 - Unexploded Ordnance (UXO) Technician II		39.82
30493 - Unexploded Ordnance (UXO) Technician III		47.73
30494 - Unexploded (UXO) Safety Escort		32.91
30495 - Unexploded (UXO) Sweep Personnel		32.91
30501 - Weather Forecaster I		36.34
30502 - Weather Forecaster II		44.20
30620 - Weather Observer, Combined Upper Air Or Surface Programs	(see 2)	29.17

30621 - Weather Observer, Senior	(see 2)	32.42
31000 - Transportation/Mobile Equipment Operation Occupations		
31010 - Airplane Pilot		39.82
31020 - Bus Aide		20.05
31030 - Bus Driver		26.26
31043 - Driver Courier		20.52
31260 - Parking and Lot Attendant		16.79
31290 - Shuttle Bus Driver		20.27
31310 - Taxi Driver		20.82
31361 - Truckdriver, Light		21.88
31362 - Truckdriver, Medium		23.21
31363 - Truckdriver, Heavy		29.68
31364 - Truckdriver, Tractor-Trailer		29.68
99000 - Miscellaneous Occupations		
99020 - Cabin Safety Specialist		19.41
99030 - Cashier		17.23
99050 - Desk Clerk		17.27
99095 - Embalmer		30.55
99130 - Flight Follower		32.91
99251 - Laboratory Animal Caretaker I		18.19
99252 - Laboratory Animal Caretaker II		19.40
99260 - Marketing Analyst		31.12
99310 - Mortician		30.55
99410 - Pest Controller		23.08
99510 - Photofinishing Worker		17.30
99710 - Recycling Laborer		31.14
99711 - Recycling Specialist		36.04
99730 - Refuse Collector		28.87
99810 - Sales Clerk		17.51
99820 - School Crossing Guard		27.42
99830 - Survey Party Chief		40.11
99831 - Surveying Aide		19.00
99832 - Surveying Technician		28.68
99840 - Vending Machine Attendant		26.06
99841 - Vending Machine Repairer		31.24
99842 - Vending Machine Repairer Helper		26.06

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth

National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

** HAZARDOUS PAY DIFFERENTIAL **

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder. All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

** UNIFORM ALLOWANCE **

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an

employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of ""wash and wear"" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the ""Service Contract Act Directory of Occupations"", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties

requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1)).""